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UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION

ROBERTO SANDOVAL CARRILLO, individually and on behalf of all others similarly situated,

Plaintiff,

v.

THE VONS COMPANIES, INC.; ONE SOURCE TECHNOLOGY LLC d/b/a ASURINT; and DOES 1-5,

Defendants.

Case No. 8:25-CV-00191-SRM-KES

Hon. Serena R. Murillo

DEFENDANT ONE SOURCE TECHNOLOGY, LLC D/B/A ASURINT'S MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSITION TO PLAINTIFF'S MOTION FOR CLASS CERTIFICATION

Date: April 15, 2026
Time: 1:30 p.m.

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I. INTRODUCTION

Plaintiff is a registered sex offender with a disturbing criminal history. In February 2023, Asurint, a consumer reporting agency ("CRA"), was requested by Vons, an employer, to prepare a background report regarding Plaintiff. During the background check process, Plaintiff self-disclosed his conviction for receipt of an image of a minor engaged in sexually explicit conduct. Asurint later accurately reported to Vons that Plaintiff was a registered sex offender. Based on Plaintiff's criminal self-disclosure and his status as a registered sex offender, Vons independently made the decision to terminate Plaintiff's employment.

The story should end there as to Asurint. Instead, Plaintiff asserts an entirely novel and unsupported theory of liability against Asurint under Section 1681b(b)(1) of the Fair Credit Reporting Act ("FCRA"), which requires that CRAs, such as Asurint, obtain a certification from end-users of consumer reports, such as Vons, that "information from the consumer report will not be used in violation of any applicable Federal or State equal employment opportunity law or regulation." 15 U.S.C. § 1681b(b)(1)(A)(ii).

Plaintiff does not dispute that Asurint obtained this specific certification from Vons—which alone dooms his claims against Asurint. Instead, Plaintiff contends that Asurint somehow should have "known" that Vons was going to disregard or disregarded the statement in the certification (it did not), that Vons' decision not to hire Plaintiff and his fellow purported class of sex offenders was in violation of Megan's Law (it was not), and that this alleged violation by Vons somehow negates the certification it provided to Asurint (it does not). On this spurious basis, Plaintiff purports to represent a "FCRA Class" of California sex offenders on whom Asurint prepared a background report that was then used by Vons to make an employment decision in alleged violation of Megan's Law.

As detailed below, apart from the obvious merits-based failures in Plaintiff's claims against Asurint, Plaintiff cannot satisfy multiple requirements for class certification under Federal Rule of Civil Procedure 23. In particular, the FCRA Class is entirely dependent on

Vons' alleged violation of Megan's Law—which Plaintiff incorrectly glosses over as a presumed fact, despite California law specifically providing for circumstances *allowing* employers such as Vons to rely on sex offender registry information to make employment decisions. Showing the convoluted nature of Plaintiff's purported class claims against Asurint, whether Vons violated *any* law will turn on individual questions as to *everyone* in Plaintiff's purported classes, all before any analysis of whether Asurint had reason to "know" that any of Vons' individual employment decisions violated *any* law. And even then, there still is *no* authority that would require a CRA such as Asurint to do anything more than obtain the required Section 1681b(b)(1) certification from Vons.

This lawsuit is an attempt by Plaintiff to turn his sex offender status into a sword to be used against conscientious California employers such as Vons, and to then extend this already unsupported employer-based theory of liability onto a third party based on a novel an entirely novel theory. There is no support for Plaintiff's claims against Vons or Asurint. There also is no basis to certify any of Plaintiff's classes, and certainly not the attenuated "FCRA Class."

Accordingly, Plaintiff's Motion should be denied.

II. FACTUAL AND PROCEDURAL BACKGROUND

A. Asurint's Business and its Limited Role as a Consumer Reporting Agency.

Asurint is a CRA, as that phrase is defined in the FCRA. Declaration of Asurint Representative Lindsey Rajan ("Asurint Decl.") ¶ 6; *see also* 15 U.S.C. § 1681a(f). In that capacity, Asurint makes available various background screening products and services, including preparing consumer reports for its customers who potentially use them in making employment decisions. Asurint Decl. ¶¶ 6-8.

Asurint's customers, including Vons, determine which background searches to order and which categories of information they want to receive in a background report. *Id.* With respect to criminal background screening, customers may select from packages including jurisdiction-based criminal history searches and sex offender registry searches. *Id.* ¶ 8.

Customers have complete autonomy with respect to whether information on a report will play a role in their decision whether to employ the subject of a consumer report. Asurint Decl. ¶ 7. Asurint does not play *any* role in the customer's decision-making, the timing of any employment decision, or the consideration or outcome of a customer's individualized assessment or hiring process. *Id.* Asurint's role is limited to compiling and furnishing background information obtained from public records and other lawful sources in response to those services specifically ordered by the customer. *Id.* ¶ 8. Asurint does not evaluate candidates, assess suitability for employment, or make hiring decisions. *Id.* ¶ 7.

At the specific request of its customers, Asurint may perform limited administrative functions associated with the background check process, including the transmission of pre-adverse action and adverse action notices at the direction of and on behalf of a requesting customer after the customer makes a preliminary decision. *Id.* ¶¶ 13-14. The FCRA requires employers, when taking action based in whole or in part on a consumer report, to send the individual a pre-adverse action and adverse action notice. *Id.* ¶ 13. The actual sending of these employer notices frequently is administratively outsourced to CRAs, who merely transmit the employer notices on behalf of and at the specific instruction of the employer. Asurint Decl. ¶¶ 13-14. When providing such services, Asurint acts at the customer's direction and on the customer's behalf, and uses a pre-adverse action or adverse action form approved by the employer. *Id.* Specifically, before Asurint will send any pre-adverse action or adverse action notice, the specific customer (including Vons) must review the background report and affirmatively initiate the request through an online portal that requires the customer to select a specific pre-adverse action notice to be sent and the address to which they want the notice sent. *Id.*

As required by the FCRA, and before preparing any employment-purposed consumer report, Asurint obtains certification from its customers that, among other things, it will not use the report in violation of applicable federal or state equal employment opportunity laws. *Id.* ¶ 19. In addition, the reports Asurint furnishes in California include

certification language confirming that the customer's ordering and use of the report is in strict compliance with all applicable laws and regulations. Asurint Decl. ¶ 21.

B. Asurint's Relationship with Vons and Vons' Certification to Asurint of Compliance With All Obligations Under Section 1681b(b)(1) of the FCRA.

As a third party provider to Vons, Asurint provides background screening services to Vons pursuant to Vons' written Services Agreement and addenda. Asurint Decl. ¶ 15; *see also* Declaration of Jasmine J. Stanzick ("Stanzick Decl.") Ex. 2 ("Vons Dep.") 168:6–19. As part of this relationship, Vons requested Asurint to conduct specific criminal record searches, including searches for sex offender registry information from California. Asurint Decl. ¶ 18; Vons Dep. 190:2–192:9.

At Vons' specific request, Asurint also provides certain administrative notice services, including the transmission of pre-adverse action and adverse action notices. Asurint Decl. ¶ 14. To initiate this service, Vons personnel must affirmatively click on a drop down screen in the online portal, identify the Vons-approved pre-adverse action notice it wants to be sent on its behalf, and select the email and physical address where the notice is to be sent to an individual on behalf of Vons. *Id.* Consistent with Vons' request, Asurint then transmits Vons' pre-adverse action and adverse action notices on Vons' behalf and at Vons' direction. *Id.* ¶¶ 13-14, 28, 31; Vons Dep. 99:25–100:1; 109:7–9. The adverse action notices specifically state that the employment decision is made by Vons, and not by Asurint. Pl. Decl. ISO Pl.'s Mot. for Class Cert. ("Pl. Decl."), Ex. I, Dkt. No. 55–2; Asurint Decl. ¶¶ 14, 31.

The Services Agreement also includes a specific certification by Vons through which it certifies that, when ordering consumer reports for employment purposes, Vons will, among other things, "[n]ot use the information in violation of any federal or state equal opportunity law or regulation . . . ." Asurint Decl. ¶ 19, Ex. A.

C. Plaintiff's Disturbing Criminal Background and Probation Violations.

Plaintiff has a lengthy criminal history and longstanding alcohol-related issues. Plaintiff testified that he was twice convicted of driving under the influence, and was

convicted of misdemeanor vandalism in 2010. Stanzick Decl. Ex. 1 ("Pl. Dep.") 53:11–17.

In August 2015, Plaintiff was charged with receipt of images of minors engaged in sexually explicit conduct, and possession of matters containing images of minors engaged in sexually explicit conduct. *See USA v. Sandoval* ("*Sandoval*"), No. 3:16-CR-01694-JLS (S.D. Cal.), Dkt. No. 1. Plaintiff was a 41-year old high school teacher at the time. Pl. Decl. ¶ 3. On May 16, 2017, Plaintiff pled guilty to receiving images of minors engaged in sexually explicit conduct and was sentenced to over 8 years in custody and 10 years of supervised release. *Sandoval*, Dkt. No. 81; *see also* Pl. Dep. 60:21–61:19, 68:10–15.

Plaintiff has a number of conditions of his supervised release, including extensive computer/internet restrictions, prohibitions on contact and proximity to places where children congregate, and drug testing and substance-abuse monitoring. *Sandoval*, Dkt. No. 81; *see also* Pl. Dep. 71:15–75:10, 124:18–125:4. Plaintiff was also required to "complete a sex offender evaluation, which may include periodic psychological … testing, … at the direction of the court or probation officer." *Sandoval*, Dkt. No. 81. As a result of this conviction, Plaintiff is a registered sex offender under California Penal Code § 290 and has been continuously listed on the California Megan's Law website since 2017. Pl. Decl. ¶ 4.

D. Vons' Hiring Procedures for Retail Job Applicants.

Vons' employment decisions for retail job applicants in California with criminal conviction histories are governed by its internal standard operating procedures. *See* Vons Dep. 30:6–33:15, 66:22–67:9; *see also* Declaration of Raymond Kim ISO Pl.'s Mot. for Class Cert. ("Kim Decl.") Ex. 10 ("Vons Hiring SOP").

After it makes a conditional offer of employment, Vons retains Asurint to conduct criminal background checks on retail job applicants. Vons Hiring SOP § 1; Vons Dep. 70:7–9. Vons applies specific procedures when reviewing the results of a criminal background check. Vons Hiring SOP § 2; Vons Dep. 66:22–71:1.

If, after a conditional offer of employment is extended, Vons' preliminary intent is to deny an applicant a position of employment "solely or in part because of the applicant's conviction history," Vons conducts "an individualized assessment . . . of whether the applicant's conviction history has a direct and adverse relationship with the specific duties of the job that justify denying the applicant the position." Vons Hiring SOP § 3. This individualized assessment includes consideration of specific factors relevant to the position. *Id.* § 3(a)-(c) (citing Cal. Gov't Code § 12952(c)(1)(A), subds. (i)-(iii)). Asurint does not participate in the individualized assessment process. Asurint Decl. ¶ 7.

If Vons makes a preliminary determination that the applicant's conviction history disqualifies the applicant from employment, Vons provides written notice of that preliminary decision in a pre-adverse action letter. Vons Hiring SOP § 4. Applicants may then provide to Vons any evidence of rehabilitation or mitigating circumstances. Vons Hiring SOP § 3; Vons Dep. 172:19–174:4. If Vons makes a final decision to deny employment based in whole or in part on an applicant's conviction history, Vons issues a written adverse action notice. Vons Hiring SOP § 5.

E. Plaintiff's Employment Application with Vons and Asurint's Background Report.

In January 2023, Plaintiff applied for an hourly position as a service deli clerk with Vons and received a conditional offer of employment. Pl. Decl. ¶ 7. The position required frequent, direct interaction with customers, including minors. Vons Dep. 183:24–184:7.

On January 23, 2023, Vons ordered a background report on Plaintiff from Asurint. Asurint Decl. ¶ 22. During the background check process, Plaintiff self-disclosed his prior conviction for receipt of a sexually explicit image of a minor as follows: "Receipt of an image of a minor. August 2017. San Diego." *Id.* ¶ 23; Pl. Dep. 130:12–131:3, 203:2–204:7, 207:16–208:6. Plaintiff's self-disclosure was included in the background report for Vons. *See* Pl. Decl. Ex. D. In the background report, Asurint accurately reported that Plaintiff was on the California sex offender registry. Asurint Decl. ¶ 24; *see also* Pl. Decl. Ex. D.

On February 28, 2023, Asurint completed Plaintiff's background report. Asurint Decl. ¶ 26. After Vons' personnel reviewed the report, they made the determination that information on the report was preliminarily disqualifying. Vons Dep. 38:22–39:3. Vons personnel affirmatively requested that, on Vons' behalf, Asurint transmit a pre-adverse action notice to Plaintiff. Asurint Decl. ¶ 28; Vons Dep. 99:25–100:1. Vons' pre-adverse action notice advised Plaintiff that Vons had received a copy of his report, and that notice was being provided "because an adverse employment decision (e.g. the withdrawal of a conditional offer of employment) may be based, in whole or in part, on this screening report or on information regarding past criminal convictions that you identified during the application process." Pl. Decl. Ex. E.

On March 6, 2023, Plaintiff e-mailed Vons and Asurint to provide "mitigating and rehabilitative evidence." Pl. Decl. Ex. F. Plaintiff also asked Asurint to add a statement to his report regarding his purported rehabilitation efforts. Asurint Decl. ¶ 29, Ex. C. Asurint added the statement to his report, advised Plaintiff that Vons had been notified of the updated report reflecting his statement, and advised him to "contact Vons Corporate office regarding hiring decision[.]" *Id.*

On March 8, 2023, Plaintiff received a final adverse action notice in which Vons withdrew his offer of employment based on its determination that Plaintiff's sex offense was "related to the job duties of the position to which [Plaintiff] applied." Pl. Decl. Ex. I; *see also* Vons Dep. 109:7–9. The notice expressly noted that "Asurint did not make this employment decision on behalf of [Vons]" and the "decision was made pursuant to Vons/Pavilions hiring policies." *Id.*

F. Plaintiff's Subsequent Probation Violations.

Plaintiff's supervised release began in July 2023, and his probation officer noted concerns almost immediately. *See Sandoval*, Dkt. No. 112.

In December 2024, Plaintiff's probation officer filed a Petition for Warrant alleging that Plaintiff had violated the terms of his supervised release on multiple days by accessing

pornographic websites. *Sandoval*, Dkt. No. 112. She further reported that an unapproved cellular device was found in Plaintiff's vehicle that had been reset to factory settings, and that a forensic examination of his monitored device revealed that he had conducted a system restore on his device and used an application called "Data Destroyer" at least seven times. *Id.* Given his continued struggles with compliance, his probation office suggested that "court intervention appears necessary to remind Mr. Sandoval of the seriousness of his court ordered conditions, and to request additional conditions to better supervise [him]." *Id.* Probation recommended "alternative options . . . in lieu of custody," including "more specific conditions of release relating to his use of internet capable devices, and his participation in drug and alcohol treatment." *Id.*

At a hearing in January 2025, Plaintiff admitted to one of the allegations of having visiting an adult pornographic website. *Id.*, Dkt. No. 118. The district court ordered that Plaintiff continue on supervised release with additional special conditions including prohibiting the use of software or devices designed to hide, alter, or delete records/logs of his computer use or internet activities and requiring that he participate in a program of drug or alcohol abuse treatment. *Id.*[1] Plaintiff filed this purported class action a week later, on January 31, 2025. Compl., Dkt. No. 1.

On August 29, 2025, Plaintiff's probation officer again sought to modify the conditions of Plaintiff's release, reporting that a review of his internet activity revealed he again was accessing pornographic websites. *Sandoval*, Dkt. No. 139. Plaintiff admitted that he had been "consuming alcohol heavily and may have stumbled across nude images of females[] [and] … acknowledged that when he consumes alcohol," it impairs his judgment. *Id.* As a result, Plaintiff's conditions were modified to include a requirement that "he submit to an alcohol monitoring device" and "abstain from the use of any and all alcohol"

[1] Plaintiff appealed the district court's sentence on February 7, 2025, after filing his purported class action lawsuit. *See Sandoval*, Dkt. No. 124. The Ninth Circuit recently denied his appeal on January 2, 2026, and the judgment took effect on January 26, 2026. *Id.*, Dkt. No. 140.

Sandoval, Dkt. No. 139. In addition, Plaintiff was required to undergo a substance abuse assessment. *Id.*

Plaintiff has been diagnosed with a substance abuse disorder, and his psychiatrist recommended intensive treatment due to alcohol use. *Id.*, Dkt. No. 72, PageID 385. At his plea hearing, Plaintiff admitted to using medication for "psychiatric conditions, schizoaffective disorder." *Id.* At his deposition in this case, Plaintiff testified that he has been diagnosed with bipolar disorder, and that he continued to use alcohol after his release from prison and had only been sober for approximately two months (it is unclear whether Plaintiff has maintained this short-lived sobriety over the last five months). Pl. Dep. 111:17–23, 150:24–153:21. He also testified that, when he viewed pornography, he was under the influence of alcohol. *Id.* 131:7–13; 150:24–151:4; *see also* Pl. Decl. ¶ 5.

On January 14, 2026, Plaintiff moved to certify three classes, including the following "FCRA Class" asserted against Asurint under 15 U.S.C. § 1681b(b)(1)(A)(ii):

> All persons in California who applied for employment with Vons and on whom Asurint conducted a background search and furnished a consumer report containing sex offender registry information from the Megan's Law Website that was used by Vons and/or Asurint for employment decisions, during the relevant statute of limitations period.

Pl. Mot. for Class Cert. ("Mot."), Dkt. No. 55, PageID 797. With respect to his claim against Asurint, Plaintiff testified that his understanding of the claim primarily was based on explanations provided by his counsel. Pl. Dep. 231:23–236:6. He testified that he believes Asurint provided information from the Megan's Law website to Vons in a way that he personally believes was improper. *Id.* 232:1–11.

III. LEGAL STANDARD

Class actions are the "exception to the usual rule that litigation is conducted by and on behalf of the individual named parties only." *Comcast Corp. v. Behrend*, 569 U.S. 27, 33 (2013) (citation omitted). To justify departure from the usual rule, a party seeking to maintain a class action "must affirmatively demonstrate" compliance with Rule 23. *Wal–Mart Stores, Inc. v. Dukes*, 564 U.S. 338, 350 (2011). "Rule 23 does not set forth a mere

pleading standard[,] … a party must not only 'be prepared to prove that there are *in fact* sufficiently numerous parties, common questions of law or fact,' typicality of claims or defenses, and adequacy of representation, as required by Rule 23(a) [but] must also satisfy through evidentiary proof at least one of the provisions of Rule 23(b)." *Comcast Corp.*, 569 U.S. at 33 (quoting *Dukes*, 564 U.S. at 350) (emphasis in original).

Because "[c]lass certification is . . . not to be granted lightly[,] . . . Rule 23 mandates that district courts 'rigorous[ly] analy[ze]' whether a proposed class meets various requirements." *Black Lives Matter L.A. v. City of L.A.*, 113 F. 4th 1249, 1258 (9th Cir. 2024) (quoting *Comcast*, 569 U.S. at 33). In many cases, "that 'rigorous analysis' will entail some overlap with the merits of the plaintiff's underlying claim." *Dukes*, 564 U.S. at 350-51. As the Ninth Circuit explained in *Wang v. Chinese Daily News, Inc.*, "'the merits of the class members' substantive claims are often highly relevant when determining whether to certify a class,' and 'a district court ***must*** consider the merits' if they overlap with Rule 23(a)'s requirements." 737 F.3d 538, 544 (9th Cir. 2013) (quoting *Ellis v. Costco Wholesale Corp.*, 657 F.3d 970, 981 (9th Cir. 2011)) (emphasis added).

While courts accept the allegations in the complaint as true, "the court need not accept conclusory or generic allegations regarding the suitability of the litigation for resolution through a class action." *Hanni v. Am. Airlines, Inc.*, No. C 08-00732 CW, 2010 WL 289297, *8 (N.D. Cal. Jan. 15, 2010) (citing *Burkhalter Travel Agency v. MacFarms Int'l, Inc.*, 141 F.R.D. 144, 152 (N.D. Cal. 1991)). "In addition, the court may consider supplemental evidentiary submissions of the parties." *Hanni*, 2010 WL 289297, *8 (citing *In re Methionine Antitrust Litig.*, 204 F.R.D. 161, 163 (N.D. Cal. 2001)). And when resolving factual disputes, even on a motion for class certification, district courts must consider "the persuasiveness of the evidence presented." *Ellis*, 657 F.3d at 982.

IV. ARGUMENT

A. Overview of the Substantive FCRA Claim.

In analyzing the requirements for class certification under Rule 23, a court must consider (but not decide) the elements of the underlying claim. *Dukes*, 564 U.S. at 350-51. Consideration of the elements of Plaintiff's proposed Section 1681b(b)(1) class claim begins with the relevant statutory provision:

> A consumer reporting agency may furnish a consumer report for employment purposes only if – (A) the person who obtains such report from the agency **certifies** to the agency that – … (ii) **information from the consumer report will not be used in violation of any applicable Federal or State equal employment opportunity law or regulation […].**

15 U.S.C. § 1681b(b)(1)(A)(ii) (emphasis added).

This section imposes a narrow obligation on CRAs: before furnishing a consumer report, the CRA must obtain a certification from the employer that the report will not be used in violation of applicable equal employment opportunity laws. In other words, Section 1681b(b)(1) governs the interaction between the employer and the CRA at the time of furnishing—not the employer's subsequent interaction with the applicant or its decision making. *See Juster v. Workday, Inc.*, 617 F. Supp. 3d 1128, 1137 (N.D. Cal. 2022) (Section 1681b(b)(1) "concerns the conditions under which a CRA may furnish a report for employment purposes").

In support of his claim against Asurint, Plaintiff can point to no authority even suggesting that Section 1681b(b)(1) requires a CRA to monitor, predict, or police an employer's conduct after a report is furnished, much less monitor and know all of the underlying laws that may apply (and how they apply) to a specific employer and to a specific candidate for employment. In fact, California courts have repeatedly held that any statutory limitations on the "use" of sex-offender registry information apply to the entity that uses the information—not to a background screening company, such as Asurint, that republishes publicly available records at an employer's request. *See Mendoza v. ADP Screening & Selection Servs., Inc.*, 182 Cal. App. 4th 1644, 1648–55 (2010) (holding that

Penal Code § 290.46 regulates employer use of registry information and does not impose liability on background screening companies); *McGroarty v. Am. Background Info. Servs., Inc.*, No. EDCV 08-1360-VAP (OPx), 2009 WL 980417, at *3 (C.D. Cal. Apr. 8, 2009) (same); *see also Juster*, 617 F. Supp. 3d at 1137; *Robles v. AMPAM Parks Mech., Inc.*, No. EDCV 14-02362-VAP (SPx), 2015 WL 1952311, at *3–4 (C.D. Cal. Apr. 28, 2015) (distinguishing CRA's statutory obligations from employer's use of information in making employment decisions).

Accordingly, to establish a violation of Section 1681b(b)(1), Plaintiff must show that Asurint ***failed*** to obtain the required certification from Vons, which Plaintiff does not (and could not) even allege.

B. Plaintiff Has Not Satisfied Rule 23(a) With Respect to the FCRA Class.

1. Plaintiff Fails to Identify an Ascertainable Class.

"Before engaging in the analysis required by Rule 23, the court must first determine whether plaintiff[]'s purported class is ascertainable." *Berndt v. California Dep't of Corr.*, No. C 03-3174 VRW, 2010 WL 2035325, at *1 (N.D. Cal. May 19, 2010). "A class definition should be 'precise, objective and presently ascertainable.'" *Id.* "[D]ue to notice requirements, class definitions of actions maintained under Rule 23(b)(3) command greater precision than those brought under Rule 23(b)(1) or (b)(2)." *O'Connor v. Boeing North American, Inc.*, 184 F.R.D. 311, 319 (C.D. Cal. July 13, 1998).

For several reasons, Plaintiff's proposed FCRA Class definition fails to identify an ascertainable class and cannot support certification. *First*, Plaintiff's class definition is inherently defective because Asurint does not "use" consumer reports for employment purposes. Asurint Decl. ¶¶ 7, 27, 30. Plaintiff's class definition is built entirely around whether sex-offender registry information "was used by Vons and/or Asurint for employment decisions." Mot. at PageID 797. That framing impermissibly attempts to collapse employer conduct into CRA liability and defines the FCRA Class by reference to

conduct Asurint does not perform and with respect to legal obligations that do not belong to Asurint.

Second, Plaintiff's class definition entirely omits the statutory predicate necessary for liability under Section 1681b(b)(1), which requires the CRA only to obtain the employer's certification. *See Juster*, 617 F. Supp. 3d at 1137; *Robles*, 2015 WL 1952311, at *4. Yet Plaintiff's class definition makes no reference to certification or to any alleged failure by Asurint to obtain the required certification. It is, in fact, indisputable that Asurint obtained certification from Vons that it would not use the report in violation of any equal employment opportunity law. Asurint Decl. ¶ 19. As a result, the proposed class necessarily sweeps in individuals whose reports were furnished lawfully, rendering the class overbroad and unascertainable.

Third, determining whether sex-offender registry information was "used . . . for employment decisions" would require individualized, merits-based inquiries into Vons' independent decision-making for each applicant, rendering membership indeterminate and defeating ascertainability. *Hanni*, 2010 WL 289297, *9 ("A class definition is inadequate if a court must make a determination of the merits of the individual claims to determine whether a person is a member of the class.") (quoting 5 James W. Moore, Moore's Federal Practice § 23.21 (2001)). Specifically, determining whether an individual belongs in the FCRA Class would require reconstructing individualized employer decision-making across 43 putative class members and making individual determinations for each.

That problem is especially acute here because Asurint's records cannot answer the questions posed by the class definition. Plaintiff relies entirely on the testimony of Vons' 30(b)(6) witness and Vons' Standard Operating Procedures. Kim Decl. ¶ 26. While Asurint's records may reflect that a report was furnished and what information it contained, they do not—and cannot—show how Vons used that information, whether it was relied upon, or whether any reliance was lawful. The FCRA Class cannot be identified without reconstructing individualized employer decision-making, rendering it unascertainable.

Courts routinely reject class definitions that require such individualized inquiries. *See Hanni*, 2010 WL 28927, *9–10 (class not ascertainable where determining membership required resolving individual questions); *Ortiz v. CVS Caremark Corp.*, No. C-12-05859 EDL, 2013 WL 6236743, at *[] (N.D. Cal. Dec. 2, 2013) (class unascertainable where "plaintiffs provided an insufficiently reliable method to determine the class members").

Finally, the proposed class is impermissibly fail-safe in that that it "impermissibly determines membership based upon a determination of liability." *Tinnin v. Sutter Valley Med. Found.*, 647 F. Supp. 3d 864, 874 (E.D. Cal. 2022) (quoting *Lewis v. First Am. Title Ins.*, 265 F.R.D. 536, 551 (D. Idaho 2010)). "The Ninth Circuit has indicated that 'obvious problems' arise 'when the class itself is defined in a way that precludes membership unless the liability of the defendant is established,' including unfairness to the defendant and difficulties determining which individuals should receive" notice. *Tinnin*, 647 F. Supp. 3d at 874 (quoting *Kamar v. RadioShack Corp.*, 375 Fed. Appx. 734, 736 (9th Cir. 2010)).

This is the exact issue here—but the legal determination first turns not even on Asurint's alleged liability, but on Vons' potential liability. Plaintiff's FCRA Class definition hinges on whether sex-offender registry information from the Megan's Law website was *unlawfully used* by Vons for employment decisions. That determination is the very merits issue Plaintiff seeks to litigate: if the alleged use violated California law, the individual is a class member; if it did not, the individual is excluded. This defect is especially pronounced here because the class definition does not even track the statutory provision under which Plaintiff sues. Instead, it predicates class membership on alleged violations of Megan's Law—an inquiry that is both merits-based and employer/Vons-specific—while asserting liability under Section 1681b(b)(1) of the FCRA, which governs only what certifications a CRA must obtain before furnishing a consumer report. Courts routinely reject fail-safe classes where membership turns on a legal determination of liability. *See, e.g.*, *Brazil v. Dell Inc.*, 585 F. Supp. 2d 1158, 1167 (N.D. Cal. 2008) (finding proposed class was a "fail-safe" class that could not be ascertained

where in order "[t]o determine who should be a member of these classes, it would be necessary for the court to reach a legal determination" that defendant was liable).

2. Plaintiff Has Not Shown That The Proposed Class Is Sufficiently Numerous.

A district court may only certify a class if it is "so numerous that joinder of all members is impracticable." Fed. R. Civ. P. 23(a)(1). A class cannot be certified unless a court can readily identify the class members in reference to objective criteria.

Plaintiff's showing is too speculative to establish numerosity. Plaintiff offers no reliable evidence of how many individuals fall within the proposed class. His numerosity analysis relies on generalized evidence that background reports were run on 43 applicants in California who appeared on the Megan's Law website and who were denied employment. Kim Decl. ¶ 27. But that does not establish how many of those individuals actually satisfy the class definition's operative criteria: that their sex-offender registry information was allegedly used for employment decisions *in an unlawful manner*.

The Northern District of California's decision in *Independent Living Resource Center San Francisco v. Lyft, Inc.* is illustrative. No. C 19-01438 WHA, 2020 WL 12602223, at *2 (N.D. Cal. Mar. 6, 2020). There, the plaintiffs sought to certify a class of wheelchair users across three counties who allegedly were "deterred" from using Lyft because Lyft failed to provide wheelchair-accessible vehicles. *Independent Living*, 2020 WL 12602223, at *2. The court found that although there were tens of thousands of wheelchair users in the relevant counties, the plaintiffs offered no reliable way to determine which individuals were deterred for the specific reason identified in the class definition. *Id.* The evidence was "too speculative to establish numerosity" because "which 40 [users] those would be is impossible to tell," meaning the court could not determine who actually fell within the class or who would be bound by the judgment. *Id.* The court further noted that the class definition "presuppose[d] what must be proven on the merits"—that Lyft had failed to provide equivalent service and that this failure "deterred" individuals from using

the platform—rendering class membership inherently indeterminate. *Independent Living*, 2020 WL 12602223, at *2.

As explained above, determining whether an applicant belongs in the FCRA Class requires individualized, merits-based inquiries into Vons' decision-making for each applicant, rendering membership indeterminate and defeating ascertainability. As in *Independent Living*, the class definition "presupposes what must be proven on the merits" by embedding the assumption that Vons used registry information unlawfully and by further presupposing (incorrectly) that Asurint itself "uses" registry information for employment decisions – which it does not. *Id.* (rejecting class definition as speculative and finding that the court "would need a more objective definition that doesn't presuppose who wins and presupposes deterrence.").

Because Plaintiff cannot establish an ascertainable class, he necessarily fails to satisfy Rule 23(a)(1)'s numerosity requirement, and class certification should be denied on this basis alone. *See Richards v. Del Webb Communities, Inc.*, No. CV-11-368-PHX-SMM, 2012 WL 12792184, at *8 (D. Ariz. Sept. 5, 2012) ("Because Plaintiff is unable to identify a clearly ascertainable class and thereby establish numerosity, the Court need go no further in its analysis of Plaintiff's class certification motion.").

3. Plaintiff Cannot Establish Common Issues of Law or Fact.

To satisfy commonality under Rule 23(a)(2), Plaintiff must demonstrate that "there are questions of law or fact common to the class." Fed. R. Civ. P. 23(a)(2). "Commonality requires the plaintiff to demonstrate that the class members 'have suffered the same injury.'" *Dukes*, 564 U.S. at 349–50.

Plaintiff identifies the purported "principle common question" as "whether Asurint furnished consumer reports containing sex-offender registry information from the Megan's Law website knowing that the information would be unlawfully used by Vons for employment decisions." Mot. at PageID 816. Plaintiff also identifies two "additional" common questions: "(a) whether such conduct is a violation of FCRA § 1681b(b)(1); and

(b) whether Asurint should be enjoined from engaging in such conduct in the future." *Id.* In support, Plaintiff relies exclusively on the 613 Notice and Vons' subsequent pre-adverse and adverse action notifications. Mot. at PageID 814–16.

As explained above, Plaintiff's theory misstates the statutory inquiry under Section 1681b(b)(1) because it is built entirely around Vons' "use" of the sex-offender registry information, which does not correspond to any uniform practice by Asurint whatsoever. Whether Vons used information from the Megan's Law website in making an employment decision is not an element of a Section 1681b(b)(1) claim and cannot supply a common answer resolving potential liability. The only relevant statutory question as to Asurint is whether it obtained the required employer certification before furnishing the report—an issue Plaintiff neither pleads as violated nor attempts to prove with common evidence. For these reasons, Plaintiff's proposed principal common question cannot generate common answers on liability because it does not correspond to any uniform practice by Asurint capable of class wide adjudication. *Ellis*, 657 F.3d at 981 (reversing certification where proposed common questions did not generate common answers on liability).

Even setting aside this statutory mismatch, commonality does not exist because it necessarily turns on individualized, employer-specific inquiries. Where "dissimilarities within the proposed class" impede the generation of such common answers, commonality is not satisfied. *Dukes*, 564 U.S. at 374–75. As discussed above, resolving liability for Vons (as is necessary for any liability determination for Asurint) would require first analyzing numerous individualized issues as to how Vons assessed its hiring decisions for each putative class member. Such individualized inquiries are not susceptible to common proof and thereby preclude commonality. *Id.* at 355–56 (commonality lacking where liability would require "individualized determinations").

Plaintiff's reliance on the January 24 notice is misplaced and does not establish a class wide question as to Asurint's purported "knowledge." The notice states only that "Asurint, a consumer reporting agency, is reporting criminal or other public record

information that may be adverse about you" and that Vons "has certified that it is using such public record information to determine your eligibility for employment." Pl. Decl. Ex. C. The notice makes no mention whatsoever of the Megan's Law registry. *Id.* Applied to the putative class, the notice reveals nothing about whether any applicant's file actually contained SOR information, other criminal history, or other public record data. Asurint would not and could not know what Vons' eventual employment decision would be. The 613 Notice is simply a notification that public record information is being reported about Plaintiff, pursuant to 15 U.S.C. § 1681k(a)(1) of the FCRA.

Nor does Asurint's administrative role in transmitting Vons' pre-adverse action or adverse action notices create a common question. These notices were sent exclusively on behalf of Vons and as directed by Vons and from Vons. They were sent because Vons selected them to be sent after it made a preliminary (and later, final) determination regarding Plaintiff's employment. Asurint Decl. ¶¶ 13–14, 28, 31. The notices expressly state that Vons, not Asurint, identified potentially disqualifying information and that the applicant could submit mitigating evidence directly *to Vons*. *See* Pl. Decl. Exs. E & I. The final adverse action notice states that "Asurint did not make this employment decision on behalf of [Vons]. This decision was made pursuant to Vons/Pavilions hiring policies." *Id.* Ex. I. Further, Plaintiff submitted additional mitigating evidence between the pre-adverse and adverse action notices. *Id.* Ex. F. Thus, even Vons itself had not yet made a final decision during that period. If Vons had not decided, Asurint certainly could not have known what Vons would ultimately do—much less "know" that any employment decision was in violation of any equal employment opportunity law.

Finally, Plaintiff's "additional common questions" do not cure the defects in his principal theory and cannot independently satisfy Rule 23(a)(2). Mot. at PageID 816. The first – "whether such conduct is a violation of FCRA § 1681b(b)(1)" – merely restates Plaintiff's flawed liability theory and is not a common question capable of classwide resolution unless the underlying liability theory itself turns on a uniform practice by Asurint

that can be proven with common evidence. The second – "whether Asurint should be enjoined from engaging in such conduct in the future" – is not a liability question at all. It is a request for a remedy, and *Dukes* makes clear that Rule 23(a)(2) demands a common contention *leading to a common answer on liability*, not a shared request for relief. *Dukes*, 564 U.S. at 360–61. An injunction cannot supply commonality where the underlying liability question is not itself capable of classwide proof.

For these reasons, Plaintiff also fails to satisfy Rule 23(a)(2).

4. Plaintiff Cannot Establish Typicality.

Typicality fails for the same reason: Plaintiff does not allege a valid Section 1681b(b)(1) violation capable of establishing liability for himself, let alone for the class, and therefore cannot show that proving his claim would prove the others' claims.

Beyond that threshold defect, Plaintiff's claim is also atypical because it turns on highly individualized facts and defenses that are unique to him and unlikely to apply to the proposed class as a whole. To evaluate typicality, a court considers "whether other members have the same or similar injury, whether the action is based on conduct which is not unique to the named plaintiffs, and whether other class members have been injured by the same course of conduct." *Hanni*, 2010 WL 289297, at *11 (quoting *Hanon v. Dataproducts Corp.*, 976 F.2d 497, 508 (9th Cir. 1992)).

First, Plaintiff's experience with Vons and Asurint was unique in several material respects: he self-disclosed his criminal conviction during the application process, and he engaged in an individualized assessment process with Vons. Pl. Dep. 128:15–17, 131:1–4; Pl. Decl. ¶¶ 13–15. Vons' adverse employment decision was based on a position-specific and applicant-specific individualized assessment, including his self-disclosed conviction, the nature of that offense, the duties of the deli-clerk position he sought, the time elapsed since conviction, and the mitigation evidence he chose to provide. Vons Dep. 39:1–3, 69:1–14, 79:6–25. These facts are specific to Plaintiff and do not reflect any uniform experience common to any class.

Second, Plaintiff is also subject to unique defenses that will predictably dominate the litigation and divert attention from any class-wide issues, including his self-disclosed conviction, which raises individualized issues regarding causation and, specifically, whether any challenged information furnished by Asurint played any role in Vons' decision at all. Courts routinely find typicality lacking where a named plaintiff's claim is subject to such individualized defenses. *See Hanon*, 976 F.2d at 508–09 (typicality defeated where representative was subject to unique defenses).

Third, as detailed *infra*, Plaintiff's significant credibility issues, including repeated violations of his supervised release conditions and his admitted alcohol-related impairments, will require extensive credibility determinations unique to him. Courts recognize that where a named plaintiff's credibility problems are significant enough that they will predictably become a central focus of the litigation, typicality is lacking. *See Dunford v. Am. DataBank, LLC*, 64 F. Supp. 3d 1378, 1392–93 (N.D. Cal. 2014) (finding that plaintiff had not satisfied Rule 23(a)(4) because her alcoholism-related problems and continuing criminal incidents during the pendency of the case rendered her unfit to represent the class).

For these reasons, Plaintiff also fails to satisfy Rule 23(a)(3).

5. Plaintiff Has Not Shown that He Will Adequately Represent the Class.

Rule 23(a)(4) requires that "the representative parties will fairly and adequately protect the interests of the class." Fed. R. Civ. P. 23(a)(4). "To determine whether named plaintiffs will adequately represent a class, courts must resolve two questions: (1) do the named plaintiffs and their counsel have any conflicts of interest with other class members and (2) will the named plaintiffs and their counsel prosecute the action vigorously on behalf of the class?" *Ellis*, 657 F.3d at 985. Here, Plaintiff's alcohol use and repeated violations of his release predictably would turn the class case into a trial about his personal conduct and credibility.

Courts deny class certification on adequacy grounds where the named plaintiff's alcohol-related conduct and ongoing criminal issues demonstrate that the plaintiff is unable to serve as a reliable fiduciary. In *Dunford*, an FCRA action against a CRA, the court denied class certification after concluding that the named plaintiff's alcoholism and continuing criminal incidents during the pendency of the case rendered her unfit to represent the class. 64 F. Supp. 3d at 1396–97. The court emphasized that Rule 23 class representatives owe fiduciary duties to absent class members and that it was unwilling to "entrust these important fiduciary duties" to a plaintiff who was "too distracted by her own criminal defense and alcohol-related issues to be able to vigorously represent the best interests of the class." *Id.* at 1397.

The same concerns apply here. Plaintiff admits to ongoing alcohol use and impaired judgment resulting from alcohol use. Pl. Dep. 131:7–13; Pl. Decl. ¶ 5. Despite having been diagnosed with a substance-abuse disorder and being recommended intensive treatment by his psychiatrist, Plaintiff voluntarily discontinued therapy in April 2025, later admitting that he did so while intoxicated. Pl. Dep. 180:20–185:5. Plaintiff further testified that he continued drinking into late August 2025—just shortly before his deposition in this case. *Id.* Most significantly, Plaintiff continues to violate the conditions of his release from prison, including viewing pornography. *Sandoval*, Dkt. No. 139. Similar to *Dunford*, these events occurred while class certification was being litigated, not years earlier. These issues will invite impeachment under Rule 609, require extensive credibility determinations, and distract from the merits of the class claims. *See Porath v. Logitech, Inc.*, No. C 18-03091 WHA, 2019 WL 6134936, *5 (N.D. Cal. 2019) (concluding that a proposed class representative "who has seven criminal convictions, is a convicted felon three times over, has a history of substance abuse, and of not reporting to his probation officer ... is unacceptable" in part because his felony convictions would be admissible as impeachment evidence under Federal Rule of Evidence 609). The Court would be asked to vest fiduciary authority over absent class members—including authority over settlement positions and

litigation strategy—in a representative whose compliance with court-ordered conditions has repeatedly been called into question.

For these reasons, Plaintiff fails to satisfy Rule 23(a)(4).

C. Plaintiff Has Not Established The Rule 23(b) Requirements.

Even if Plaintiff could satisfy Rule 23(a) (which he cannot), certification under Rule 23(b)(2) or Rule 23(b)(3) is still improper.

1. Plaintiff Lacks Standing to Seek Injunctive Relief.

Plaintiff seeks broad injunctive relief, requesting an order "prohibiting Asurint from generating and providing Vons with background reports containing SOR information with knowledge that Vons uses the background reports in violation of the Megan's Law." Mot. at PageID 820. This relief cannot be certified under Rule 23(b)(2) for several independent reasons.

First, Plaintiff seeks to enjoin conduct expressly permitted under California law. The injunction Plaintiff proposes would bar Asurint from reporting SOR information to Vons under any circumstances. But California law expressly permits CRAs to furnish SOR-derived conviction information, so long as the information is publicly available and lawfully sourced. Courts applying California law have recognized that reporting SOR information is permissible. *Mendoza*, 182 Cal. App. 4th at 1648–55. Because Asurint's inclusion of SOR information is lawful, Rule 23(b)(2) cannot be used to prohibit it.

Second, the requested injunction is not tied to any violation of Section 1681b(b)(1). Section 1681b(b)(1) regulates how a consumer reporting agency furnishes a report—requiring it to obtain employer certifications before doing so. It does not prohibit a CRA from reporting particular categories of public-record information, and it does not require a CRA to police an employer's hiring decisions or predict whether an employer will allegedly use information unlawfully. Plaintiff identifies no Asurint practice that violates § 1681b(b)(1). Because the requested injunction does not correspond to any cognizable statutory violation, it cannot be certified under Rule 23(b)(2).

Third, Plaintiff identifies no uniform or ongoing Asurint conduct that a single injunction could remedy. Rule 23(b)(2) provides for class certification if "a single injunction or declaratory judgment would provide relief to each member of the class." *Indep. Living Res. Ctr. San Francisco v. Lyft, Inc.*, No. C 19-01438 WHA, 2020 WL 12602223, at *2 (N.D. Cal. Mar. 6, 2020). Plaintiff identifies no such Asurint-wide practice. His "knowledge" theory rests entirely on documents and communications unique to his own application—his 613 notice, his pre-adverse and adverse action letters, and his personal correspondence. None of that reflects an ongoing Asurint policy, much less one applicable class-wide. Without ongoing, uniform conduct, injunctive relief is inappropriate under Rule 23(b)(2).

Finally, Plaintiff's proposed injunction depends on whether Asurint supposedly "knew" Vons would use the report unlawfully for each individual applicant—a showing that would necessarily require file-by-file inquiries into what information Vons saw, what each applicant self-disclosed, whether mitigation was submitted, Vons' internal individualized assessment process, and whether any communications occurred that could support a finding of "knowledge." Such applicant-specific determinations are incompatible with Rule 23(b)(2)'s requirement of a single, indivisible injunction.

For these reasons, the Court should deny Plaintiff's request for injunctive relief against Asurint under Rule 23(b)(2).

2. Plaintiff Has Not Shown that Individual Issues Will Not Predominate.

Rule 23(b)(3) permits class certification if "the questions of law or fact common to class members predominate over any questions affecting only individual members, and that a class action is superior to other available methods for fairly and efficiently adjudicating the controversy." Fed. R. Civ. P. 23(b)(3). This requirement is "far more demanding" than the commonality requirement of Rule 23(a) and asks whether a putative class is "sufficiently cohesive" to merit representative adjudication. *Amchem Prods., Inc. v. Windsor*, 521 U.S. 591, 623-24 (1997).

Plaintiff fails to show predominance for several independent reasons.

First, Plaintiff's theory rests on a fundamental legal error: it assumes that Vons' individualized employment decisions can be attributed to Asurint. They cannot. Asurint's statutory obligation under Section 1681b(b)(1)(A)(ii) is limited to obtaining a certification before furnishing a report. Whether Vons later evaluated registry information, how it weighed mitigation, or whether that reliance complied with state or local law is not part of the CRA's statutory duty and cannot be adjudicated against Asurint on a class wide basis. *See Juster*, 617 F. Supp. 3d at 1137; *Robles*, 2015 WL 1952311, at *3–4. Predominance cannot rest on alleged employer-side conduct that the statute does not reach.

Second, Plaintiff's reliance on Vons' pre-adverse and adverse action notices and generalized testimony about Vons' internal scoring processes does not change the analysis. Those materials reflect employer adjudication and ministerial transmission of notices at Vons' direction, not a uniform Asurint practice relevant to § 1681b(b)(1)(A)(ii). Common proof will not show that Asurint knew, at the time of furnishing for each applicant, that Vons would unlawfully "use" any particular item, and whether any particular employment decision was influenced by registry information, and whether such influence was lawful, necessarily varies from applicant to applicant.

Third, individualized mini-trials would be required for each class member. For each putative class member, the Court would need to determine: (a) the contents of that person's report; (b) whether the sex-offender registry entry came from Megan's Law or other sources—or was self-disclosed; (c) what Vons actually reviewed; (d) whether and how Vons weighed registry information in the individualized assessment; (e) what mitigation evidence was presented and how it was evaluated; (f) whether any reliance was lawful under state/local law; and (g) whether any alleged misuse was known—or knowable—to Asurint at the time of furnishing. Those individualized showings defeat predominance. *See, e.g., Castillo v. Bank of Am., NA*, 980 F.3d 723, 732 (9th Cir. 2020) (finding no

predominance where determination of defendant's liability to each class member would require individualized assessment and could not be established on a class-wide basis).

Fourth, Article III injury and causation will vary (*e.g.*, where Vons relied on self-disclosure or other lawful records; where mitigation changed outcomes). Statutory damages turn on willfulness and knowledge, both of which require applicant-specific proof as to what Asurint knew at the time of furnishing. These individualized issues would overwhelm any common ones. *See Vrugtman v. Its Just Lunch Int'l LLC*, No. EDCV202352JGBSPX, 2023 WL 6369765, at *10 (C.D. Cal. Aug. 25, 2023) (finding no predominance where the court would need to "rely on 'individual testimony to establish the existence of an injury and the amount of damages' which will result in a 'series of mini-trials'") (quoting *Bowerman v. Field Asset Servs., Inc.*, 60 F.4th 459, 469 (9th Cir. 2023)).

Because liability cannot be established without individualized proof of employer conduct, causation, and reliance, common questions do not predominate. Rule 23(b)(3) therefore provides an independent and sufficient basis to deny class certification.

V. CONCLUSION

For the foregoing reasons, Asurint respectfully requests that the Court deny Plaintiff's Motion for Class Certification.

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Date: February 18, 2026

CERTIFICATE OF SERVICE

I hereby certify that on February 18, 2026, a true and correct copy of the foregoing document has been electronically filed with the Clerk of the Court using the CM/ECF system, which will send notification of such filing to all counsel of record.

/s/ John W. Drury
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